

**ALABAMA CRIME VICTIMS COMPENSATION COMMISSION
ADMINISTRATIVE CODE**

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CHAPTER 262-X-1 DEFINITIONS

CHAPTER 262-X-2 THE COMMISSION AND ITS MEMBERS

262-X-1-.01 General Information and Definitions.

(1) Purpose: It is the intent of the Legislature and the purpose of the Alabama Crime Victims Compensation Commission (ACVCC) to provide financial and other assistance for victims of violent crime for the allowable expenses that are incurred as a direct result of victimization. Eligibility requirements are listed in the following sections:

(2) Program Description: ACVCC provides financial assistance for allowable expenses to victims of violent crime who have suffered personal injury, psychological injury or death. Compensation may be reduced or denied based on contribution to one's own victimization as defined in the following sections. The program provides compensation for a number of services, which are listed in the following sections. ACVCC does not award compensation for expenses which are paid by a collateral source. The program also has a statutory entitlement to subrogation when a claimant has received recovery from a collateral source after having been paid by ACVCC.

The maximum amount of compensation that may be awarded in any one claim is \$15,000.

(3) The public may obtain information about the Commission by visiting its website at www.acvcc.alabama.gov or calling the Commission at 334.290.4420. Submissions to the agency should be mailed to PO Box 231267; Montgomery, AL 36123-1267 or emailed to info@acvcc.alabama.gov. Requests for public records should be emailed to public.records@acvcc.alabama.gov or via mail to: ACVCC, Attn: General Counsel, PO Box 231267, Montgomery, AL 36123-1267. A copy of the Commission's Public Records Policy is available at https://acvcc.alabama.gov/Public_Records.htm.

(4) The Commission will maintain a Departmental Forms Index. The Departmental Forms Index (Appendix A) contains a listing of all forms a claimant/victim may be required to complete and submit in order to receive compensation benefits.

(a) The Index will be updated when forms are added or removed.

(b) A copy of forms may be obtained by following the guidelines in 262-X-1-.01(3).

(c) A list of internal forms excluded from the Departmental Forms Index may be obtained by following the guidelines in 262-X-1-.01(3).

(5) Definitions: As used in these rules the following words shall include, but are not limited to, the following meanings unless the context clearly requires a different meaning:

(a) Commission. The Alabama Crime Victims Compensation Commission as described in Chapter 262-X-2 of these rules.

(b) Criminally Injurious Conduct: Criminally injurious conduct includes any of the following acts:

1. An act occurring or attempted within the geographical boundaries of this state which results in serious personal injury or death to a victim for which punishment by fine, imprisonment or death may be imposed; or

2. An act occurring or attempted outside the geographical boundaries of this state in another state of the United States of America which is punishable by fine, imprisonment or death and which results in personal injury or death to a citizen of this state; and shall include an act of terrorism, as defined in Section 2331 of Title 18, United States Code, committed outside of the United States, against a resident of this state; provided, however, such a citizen at the time such act was committed had a permanent place of residence in the geographical boundaries of this state, and in addition thereto:

(a) Had a permanent place of employment located within the geographical boundaries of this state; or

(b) Was a member of the regular armed forces of the United States of America; or the United States Coast Guard; or was a full-time member of the Alabama National Guard, Alabama Air National Guard, U.S. Army Reserve, U.S. Naval Reserve, U.S. Air Force Reserve; or

(c) Was retired and receiving Social Security or other retirement income; or

(d) Was 60 years of age or older; or

(e) Was temporarily in another state of the United States of America for the purpose of receiving medical treatment; or

(f) Was temporarily in another state of the United States of America for the purpose of performing employment related duties required by an employer located within the geographical boundaries of this state as an expressed condition of employment or employee benefits; or

(g) Was temporarily in another state of the United States of America for the purpose of receiving occupational, vocational or other job-related training or instruction required by an employer located within the

geographical boundaries of this state as an expressed condition of full-time employment or employee benefits; or

(h) Was a full-time student at an academic institution, college or university located in another state of the United States of America; or

(i) Had not departed the geographical boundaries of this state for a period exceeding 30 days or with the intention of becoming a citizen of another state or establishing a permanent place of residence in another state.

The term 'criminally injurious conduct' shall not mean: An act committed outside the geographical boundaries of this state upon a person who was not at the time such act was committed a citizen of the State of Alabama or an act committed outside the geographical boundaries of this state upon a person who at the time such act was committed had departed the geographical boundaries of this state for the purpose of becoming a citizen of another state or for the purpose of establishing a permanent place of residence in another state.

(c) Victim. A person who suffered serious personal injury, psychological injury as a result of a direct face-to-face threat of physical injury, or actual physical injury, or death as a result of criminally injurious conduct.

(d) Dependent. A natural person wholly or partially dependent upon the victim for care or support, and includes a child of the victim born after the death of the victim when the death occurred as the result of criminally injurious conduct.

(e) Claimant. Any of the following persons applying for compensation under this chapter:

1. A victim;

2. A dependent of a deceased victim, if such victim died as result of criminally injurious conduct; or

3. A person authorized to act on behalf of a victim, or a dependent of a deceased victim if such victim died as a result of criminally injurious conduct.

(f) Dependent spouse. The spouse of a deceased victim, unless it is shown that he/she was voluntarily living apart from the deceased victim for the twelve (12) months immediately preceding the criminally injurious conduct that caused the victim's death and it is shown that the deceased victim was not in any way contributing support to the spouse.

(g) Dependent child. An unmarried child under the age of nineteen (19) years for whom the deceased victim was a significant source of direct support to the minor child in the twelve (12) months immediately preceding the criminally injurious conduct that caused the victim's death. A dependent child is also one over the age of nineteen (19) who is physically or mentally incapacitated from earning and it is shown that the deceased victim was a significant source of direct support to the adult child in the twelve (12) months immediately preceding the criminally injurious conduct that caused the victim's death. A dependent child is also one over the age of nineteen (19), but under the age of twenty-six (26), who is enrolled in college, technical school, or vocational school and it is shown that the deceased victim was a significant source of direct support to the adult child in the twelve (12) months immediately preceding the criminally injurious conduct that caused the victim's death.

(h) Allowance Expense. Charges incurred for needed products, services and accommodations, including but not limited to, medical care, rehabilitation, rehabilitative occupational training, and other remedial treatment and care. For incidents of criminally injurious conduct occurring on or after October 1, 2014, through July 8, 2020, no more than seven thousand dollars (\$7,000.00) may be paid for expenses related to funeral, cremation, or burial. For incidents of criminally injurious conduct occurring on or after July 9, 2020, no more than five thousand dollars (\$5,000.00) may be paid for expenses related to funeral, cremation, or burial.

(i) Work Loss. Loss of income from work the victim would have performed if such person had not been injured or died, reduced by any income from substitute work actually performed by the victim or by income the victim would have earned in available appropriate substitute work which he or she was capable of performing but unreasonably failed to undertake. Work loss also includes loss of income of an offender charged with domestic violence under Sections 13A-6-130, 13A-6-131, and 13A-6-132 when the victim was residing with the offender at the time of commission of the offense and the offender's income was a significant source of direct support for the victim.

(j) Replacement Services Loss. Expenses reasonably incurred in obtaining ordinary and necessary services in lieu of those the victim would have performed, not for income, but for the benefit of self or family, if the victim had not been injured or died.

(k) Economic Loss of a Dependent. A loss after the death of the victim of contributions of things of economic value to the dependent, not including services which would have been received from the victim if he or she had not suffered the fatal injury, less expenses of the dependent avoided by reason of death of the victim.

(l) Replacement Services Loss of Dependent. The loss reasonably incurred by dependents after death of the victim in obtaining ordinary and necessary services in lieu of those that the deceased victim would have performed for their benefit had the deceased victim not suffered the fatal injury, less expenses of the dependent avoided by

reason of death of the victim and not subtracted in calculating the economic loss of the dependent.

(m) Economic Loss. Monetary detriment consisting only of allowable expense, work loss, replacement services loss and, if injury causes death, economic loss and replacement services loss of the dependent, but shall not include noneconomic loss, or noneconomic detriment.

(n) Noneconomic Loss or Detriment. Pain, suffering, inconvenience, physical impairment and nonpecuniary damage.

(o) Collateral Source. The source of income, financial or other benefits or advantages for economic loss other than the compensation paid by the Compensation Commission which the claimant has received or is entitled to receive or is readily available to the claimant from any or more of the following:

1. The offender;
2. The government of the United States or any agency thereof, in the form of benefits, such as Social Security, Medicare and Medicaid, a state or any of its subdivisions or an instrumentality of two or more states, unless the law providing for the benefits or advantages makes them excessive or secondary to the benefits under this chapter;
3. Any temporary nonoccupational disability insurance;
4. Workman's compensation;
5. Wage continuation programs of any employer;
6. Proceeds of a contract of insurance payable to the claimant for loss which the victim sustained because of the criminally injurious conduct; or
7. A contract providing prepaid hospital and other health care services or benefits for disability.

(p) Immediate Family. Immediate family for purposes of determining compensation eligibility shall mean spouse, child, and parent/legal guardian. Except when unusually strong personal ties exist, due to the victim or family member having been reared by a person of some relationship other than which is provided for in this definition for a period of twenty-four consecutive months or longer, this relationship may be considered as immediate family at the discretion of the Commission.

262-X-2-.01 Composition.

(1) There is hereby created the Alabama Crime Victims Compensation Commission, which shall be composed of three residents of the State of Alabama, who shall be appointed by the Governor with the advice and consent of the Senate, for terms of four (4) years each or until their successors are appointed and qualified. Provided, however, initial appointments shall be as follows: One member shall be appointed for two (2) years and one member shall be appointed for three (3) years and one member shall be appointed for four (4) years. All appointments to fill vacancies shall be for the duration of the unexpired term and subsequent appointments shall be for four-year terms. The membership of the board shall be inclusive and the Governor shall coordinate his or her appointments so that the diversity of gender, race, and geographical areas is reflective of the makeup of this state.

(2) At least one member shall be a law enforcement officer with a minimum of 10 years' experience in or with a law enforcement agency which has among its primary duties and responsibilities the investigation of violent crimes and the apprehension or arrest of the perpetrators.

(3) At least one member shall be a victim of a crime of violence who suffered serious personal injury as a result of the crime, a member of a victim's immediate family or a member of a deceased victim's immediate family if the deceased victim died as a result of a crime of violence, or an officer of a nonprofit charitable crime victims organization established pursuant to the laws of Alabama.

262-X-2-.02 Officers. Each year the Commission shall elect a chairman from its membership. Chairperson elections shall be held in the month of June. The Commission may appoint an executive director who shall serve at the pleasure of the Commission and shall be paid a salary in an amount to be determined by the Commission.

262-X-2-.03 Meetings.

The Commission shall have its principal place of business in the county wherein the State Capitol is located. The Commission shall quarterly hold at its principal place of business public meetings on the second Thursday of January, April, July, and October at 9:00 a.m. and at times and places as its members may elect. Any two (2) members of the Commission shall constitute a quorum for the purposes of transacting the business of the Commission and two (2) votes in favor shall be necessary for a decision by the Commission at any meeting of the Commission. Meetings shall be conducted using Roberts Rules of Order. All meetings of the Commission shall be publicized in accordance with the Alabama Open Meetings Act. Any change to the regular Commission meeting shall be publicized in accordance with the Alabama Open Meetings Act.

262-X-2-.04 Rulemaking.

(a) From time to time the Commission shall establish rules and regulations for the administration of its duties and responsibilities pursuant to this chapter. All rules shall be passed by a majority vote of the three member Commission. A copy of the current rules shall be published in each year's annual report and shall be made available to the public upon request.

(b) Petitions for Adoption, Repeal, or Change of Rule

1. Any person may petition the Commission for the adoption of a new rule or for the repeal or change of any existing rule.
2. Action by the Commission on any such petition shall be as provided in ALA. CODE § 41-22-8.
3. In order to be considered, a petition for a rule change must be in writing and contain the following minimum information:

- (a) A title reflecting that the petition seeks the adoption of a new rule, or the modification or repeal of an existing rule or rules.
- (b) The petitioner's name, address, and telephone number.
- (c) A statement identifying all rules or statutes that may be involved should the relief sought in the petition be granted in whole or in part.
- (d) A clear and concise statement or narrative as to why the new rule, or modification or repeal of an existing rule is needed, specifying:
 - (i) the persons or class of persons it would affect and how it would affect them;
 - (ii) the benefits and disadvantages of the proposed rule, modification or repeal;
 - (iii) the estimated cost or cost savings to the Commission;
 - (iv) any other reasons why the rule, modification, or repeal should be accepted by the Commission;
 - (v) the legal authority for the proposed rule, modification or change;
 - (vi) the names and complete addresses of any persons, firms, organizations, and the identity of any class of persons known to the petitioner who would be or could be adversely affected by the proposed rule, modification, or repeal.
- (e) The reason for submitting the petition, if the reason is not apparent from the face of the petition.
- (f) Full disclosure of the petitioner's interest.
- (g) A statement as to whether the issues presented by the petition are presently under consideration by the Commission or by any judicial or quasi-judicial body in any pending proceedings, and if so, before which body they are pending.
- (h) A certification by the petitioner that the information contained in the petition is true and correct to the best of petitioner's knowledge, and that the petition has not been filed for any improper purposes, or for delay or harassment. The certification must be signed by the petitioner and the petitioner's signature must be notarized.

(c) Declaratory Rulings.

1. Any person substantially affected by a rule may petition the Commission for a declaratory ruling with respect to the validity of a rule or the applicability to any person, property or state of facts of any rule or statute enforceable by it or with respect to the meaning and scope of any order of the Commission.
2. The petition shall be in writing and shall include:

- (a) The name and address of the petitioner;
- (b) A statement of facts sufficient to show that the person seeking relief is substantially affected by the rule;
- (c) The rule, statute, or order and the exact question(s) to which an answer is requested;
- (d) The reason(s) for submitting the petition;
- (e) Full disclosure of the petitioner's interest(s);
- (f) Statement as to whether the petitioner's case is presently under consideration by the Commission or in any pending proceeding;
- (g) A certification by the petitioner that the information contained in the petition is true and correct to the best of petitioner's knowledge, and that the petition has not been filed for any improper purposes, or for delay or harassment. The certification must be signed by the petitioner and the petitioner's signature must be notarized.

3. Failure of the Commission to issue a declaratory ruling within forty-five days of date of receipt of request shall constitute a denial of the request.

4. Circumstances in which rulings shall not be issued include, but are not necessarily limited to:

- (a) Lack of jurisdiction;
- (b) Lack of clarity of the issue presented;
- (c) No clear answer determinable;
- (d) On a petition which seeks the immediate payment or non-payment of benefits under the Alabama Crime Victims' Compensation Act;
- (e) If petitioned for by a person not a party to the contested case if the matter is involved in a contested case;
- (f) On matters in litigation.

262-X-2-.05 Records.

The chairman of the Commission shall keep a true record of all the proceedings of the meetings of the Commission. At the call of any member the vote on any pending question shall be taken by 'ayes' and 'nays', and the same shall be entered in such record. The written minutes of the proceedings shall be maintained by the agency. The Commission shall meet in Executive Session in compliance with the Alabama Open Meetings Act. The record of the proceedings of the Commission shall be open to any member of the Commission and to the public at all times and a copy of such record, certified by the chairman shall be competent evidence in all courts. Provided, however, the Commission shall decline to disclose the names and addresses of victims or claimants who have applied for compensation pursuant to the provisions of this chapter or the facts or circumstances of the criminally injurious conduct perpetrated against them.

262-X-2-.06 Bond.

All members and employees of the Commission handling money or exercising authority over any property shall, before entering the discharge of their duties, give bond with a surety company authorized to do business in the State of Alabama, a surety, payable to the Commission in an amount or amounts sufficient to protect the Commission against any loss with respect to the funds, money or property handled, conditioned for the faithful discharge of their duties and responsibilities and further

conditioned upon their faithfully accounting for all monies, funds, or properties coming into their possession in the capacity of their employment.

262-X-2-.07 Duties of the Attorney General.

The attorney general or the district attorney of the county wherein the state capital is located shall, upon written request by the Commission represent the Commission in all litigation to which the Commission is a party or in which the Commission has an interest. The attorney general shall serve as legal advisor to the Commission.

262-X-2-.08 Compensation of Commission Members.

All Commission members shall be paid and reimbursed for expenses as established by the Code of Alabama.

**CHAPTER 262-X-3
THE COMMISSION - POWERS AND DUTIES**

262-X-3-.01 The Commission-General Powers And Duties. The Commission shall have all the powers and privileges of a corporation and all of its business shall be transacted in the name of the Commission. In addition to any other powers and duties specified elsewhere in this chapter, the Commission may do any of the following:

1. Regulate its own procedures except as otherwise provided in this chapter;
2. Define any term not defined in this chapter;
3. Prescribe forms necessary to carry out the purposes of this chapter;
4. Obtain access to investigative reports made by law enforcement officers or law enforcement agencies which may be necessary to assist the Commission in making a determination of eligibility for compensation under the provisions of this chapter; provided, however, such reports and the information contained therein, when received by the Commission, shall be confidential and under no circumstances may the Commission disclose the same except to a grand jury;
5. Take judicial notice of general, technical and scientific facts within their specialized knowledge;
6. Publicize the availability of compensation and information regarding the filing of claims;
7. Collect all monies provided by this chapter to be collected by the Commission;

8. Provide for and maintain all necessary administrative facilities and personnel;
9. Provide for payment of all administrative salaries, fees, and expenses;
10. Cause its monies to be invested and its investments sold or exchanged and the proceeds and income collected;
11. Determine who is a victim or dependent;
12. Consider all applications for compensation or other benefits provided for in this chapter;
13. Authorize the executive director to determine eligibility for all applications for compensation and authorize payment for approved and reduced claims.
 - a. The Commission shall review all contested cases pursuant to the Alabama Administrative Procedure Act. The Commission may affirm, reverse, or modify the executive director's claims decisions.
14. Adopt rules to expedite the administration of the affairs of the Commission not inconsistent with this article.
15. Provide descriptive literature and promotional items respecting the duties of the Commission.
16. Pay all compensation or other benefits that may be determined to be due under this chapter and under the rules of the Commission;
17. Employ such agents, attorneys, actuaries and other specialized personnel that shall be necessary or desirable to enable the Commission to carry on its functions in a proper and sound manner;
18. Receive by gift, grant, devise or bequest any monies or property of any nature or description;
19. Accept and administer loans, grants, and donations from the federal government, its agencies and all other sources, public and private, for carrying out any of its functions;
20. Develop a comprehensive analysis of the problems regarding victims of crime within the criminal justice system or systems of this state and formulate model programs, plans or methods for lessening the physical, mental or financial burdens placed on innocent crime victims by the operation of the criminal justice system, both on the state and local level;

21. Identify laws, rules or regulations proposed or adopted by any agencies or institution of this state or any political subdivision thereof which have or will have a significant adverse or beneficial impact upon crime victims and to advocate the adoption, repeal, or modification thereof in the interest of innocent victims of crime;

22. Collect, develop and maintain statistical information, records and reports to carry out its powers, duties or functions, pursuant to the provisions of this chapter. All agencies and institutions of this state or the political subdivisions thereof, upon written request by the Commission, shall furnish the Commission such statistical information or data as requested by the Commission to fulfill its duties and responsibilities;

23. Award loans or grants of money, equipment or personnel to public or private nonprofit corporations or associations, agencies of the State of Alabama or political subdivisions thereof, or to state, county, or municipal law enforcement, prosecutorial, or judicial agencies upon such terms and conditions as the Commission may deem proper for the purpose of developing, enhancing or establishing bona fide model crime victims service programs which emphasize the collection of restitution from criminals as an integral part of the criminal justice process. The loans or grants shall only be awarded when sufficient funds are available in excess of reasonably anticipated or projected claims for compensation;

24. Provide for the cost of forensic medical examinations for the purpose of gathering evidence and treatment for preventing sexually transmitted infections in sexual abuse crimes and offenses;

25. Carry out any powers expressly granted elsewhere in this chapter to the Commission; and

26. All other powers necessary for the proper administration of the provisions of this chapter.

262-X-3-.02 Annual Report Required.

The Commission shall publish annually a report showing the fiscal transactions of the Commission for the preceding year, the amount of the accumulated cash, and securities of the Commission and a balance sheet showing the financial condition of the Commission by means of an actuarial evaluation of the assets and liabilities of the Commission. The current agency administrative code shall be published in each year's annual report.

262-X-3-.03 Audit Of Financial Affairs Of Commission Authorized.

The Director of the Department of Examiners of Public Accounts shall at least once every other year and at such other times as such director shall deem appropriate cause to be performed a detailed audit of the financial affairs of the Commission and shall promptly notify the appropriate grand jury as to any possible violations of law.

262-X-3-.04 Compensation For Economic Loss Resulting From Criminal Conduct-Authorized; Procedure.

- (1) The Commission may award compensation for economic loss arising from criminally injurious conduct as satisfied by a preponderance of the evidence that the requirements for compensation have been met.
- (2) The Commission shall hear and determine all matters relating to claims for compensation, and shall have the power to reinvestigate or reopen claims without regard to statutes of limitation.
- (3) The Commission shall have the power to subpoena witnesses, compel their attendance, require the production of records and other evidence, administer oaths or affirmations, conduct hearings and receive relevant evidence.

262-X-3-.05 Collateral Source Contribution Not Required.

The Commission shall not require any claimant to seek or accept any collateral source contribution, unless the claimant was receiving or was entitled to receive such benefits prior to the occurrence giving rise to the claim under the provisions of this chapter; provided, however, no applicant shall be denied compensation solely because such applicant is entitled to income from a collateral source. All claimants filing a civil suit for damages resulting from the victimization for which they filed for compensation must promptly report the filing of such suit to the Commission.

262-X-3-.06 Procedure In Contested Cases.

Authority: Code of Alabama § 15-23-10(a)(b)(c), (1995), which provides:

- (a) Every party to a claim shall be afforded an opportunity to appear and be heard and to offer evidence and argument on any issue relevant to the claim, and to examine witnesses and offer evidence in reply to any matter of an evidentiary nature in the record relevant to the claim.
- (b) In a contested case, all parties shall be afforded an opportunity for a hearing after reasonable notice pursuant to regulations promulgated by the commission. A record of the proceedings of the hearing in a contested case shall be made and shall be transcribed upon request of any party who shall pay transcription costs unless otherwise ordered by the commission.
- (c) The commission may, without a hearing, settle a claim by stipulation, agreed settlement, consent order or default.
 - (1) In the event that a crime victims' compensation claim is approved in a modified form, not approved, or approved - but reduced, the Commission shall notify the claimant by certified mail, return receipt requested, within ten (10) calendar days of the Commission's action setting forth the basis of the Commission's decision.
 - (2) The claimant shall have the right to appeal the Commission's final decision. The claimant may appeal the final decision by notifying the Commission's Executive Director in writing of the

intent to appeal within thirty (30) calendar days of receiving the letter setting forth the Commission's decision. The appeal request must be received by the Commission within thirty (30) calendar days. Regular mail is accepted. However, certified mail is strongly recommended. The claimant must sign the request for a contested case hearing (administrative appeal hearing) in order for it to be processed.

- (3) All contested case hearings shall be held in accordance with the Alabama Administrative Procedures Act.
- (4) All claimants shall receive a minimum of thirty (30) days notice of the contested case hearing.
- (5) Pursuant to §41-22-12(a) *Code of Alabama* (1975), the Commission shall deliver to the claimant the notice of the contested case hearing by first class mail, postage prepaid, to be effective upon the deposit of the notice in the mail. The notice of the administrative appeal hearing shall also be delivered to the claimant by certified mail, return receipt requested.
- (6) In a contested case hearing, all parties shall be afforded an opportunity to appear and be heard.
- (7) The claimant may request that subpoenas be issued for the contested case hearing.
- (8) The Commission shall render its decision relative to the contested case hearing within ten (10) calendar days of the formal hearing and the claimant will be notified by certified mail, return receipt requested.
- (9) An impartial governmental hearing officer from a list certified by the State of Alabama Personnel Department shall be provided by the Commission to preside over all contested case hearings and perform such parliamentary functions as he/she deems necessary. The Commission shall render the final decision in the claim. A certified court reporter shall be used to transcribe each appeal hearing. A record of the proceedings shall be made and shall be transcribed upon request of any party, who shall pay transcription costs unless otherwise ordered by the Commission.
- (10) The claimant's contested case hearing will be dismissed if he/she fails to appear without good cause.

262-X-4-.01 Filing of Claims.

- (1) A claim may be filed by the victim, a dependent of a deceased victim, or a person legally authorized to act on behalf of a deceased victim. When the victim is a minor, a parent or legal guardian may file on his/her behalf. A guardian, conservator, or other person legally authorized to act on behalf of an incapacitated victim may file a claim on his/her behalf.
- (2) A claim must be filed with the Commission within one (1) year after the death or injury upon which the claim is based or the Commission finds that there was good cause for the failure to file within that time.
- (3) The date on which each claim is received by the Commission shall be documented. An ACVCC application that has been signed by either facsimile signature or electronic signature must be submitted for a compensation request to be processed. If the Commission is not satisfied that the facsimile signature or the electronic signature is authentic, it may request an original, notarized signature from the claimant.
- (4) The Commission will make written request to the claimant for needed information/documentation. The claimant shall have forty-five (45) days to submit the requested information/documentation to the Commission. Failure to provide information/documentation

within forty-five (45) days may, at the Commission's discretion, result in the non-approval of the claim.

(5) Separate claims may be filed for individual family members who are victims.

262-X-4-.02 Eligibility Criteria Generally.

- (1) The incident must have occurred on or after June 1, 1984.
- (2) The incident must have been reported within 72 hours after its occurrence or the Commission must find there was good cause for the failure to report within that time. Good cause includes, but is not limited to the minority, infirmity or incapacity of the claimant.
- (3) The application must be filed within one (1) year of the incident unless the Commission finds there was good cause for the failure to report within that time.
- (4) The victim must have suffered bodily injury, psychological injury as the result of a direct, face to face threat of physical injury, or actual physical injury or death as a result of the criminal actions of another.
- (5) The claimant or victim must cooperate fully with law enforcement and the Commission staff. If law enforcement officials or Commission staff are not satisfied with the victim's or claimant's cooperation, the Commission may "not approve" the claim.
- (6) Requested expenses shall not be eligible for compensation if they have been paid by a collateral source.
- (7) The victim or claimant must not be the offender or an accomplice of the offender.
- (8) No portion of the compensation shall benefit the offender or accomplice.
- (9) If the applicant, after making application for compensation to the Commission, then perpetrates any criminally injurious conduct or is convicted of a felony, the applicant shall be ineligible for compensation.
- (10) The claimant must submit an application that has been signed by either facsimile signature or electronic signature. If the Commission is not satisfied that the facsimile signature or the electronic signature is authentic, it may request an original, notarized signature from the claimant.
- (11) A person must be a U.S. citizen, a person who is legally present in the U.S., or an alien eligible for public benefits in order to receive compensation benefits.
- (12) An alien who is defined as an eligible alien pursuant to 8 U.S.C. §1621(a) or 8 U.S.C. § 1641, or certified as a victim of human trafficking pursuant to 22 U.S.C. §7105 may be eligible for compensation benefits.
- (13) Proof of U.S. citizenship, legal presence in the U.S., or proof of being an alien eligible for public benefits must be provided for every claimant/victim.
 - a. A copy of one of the following documents may be accepted as evidence of U.S. citizenship:
 - i. A birth certificate issued in or by a city, county, state, or other governmental entity within the United States or its outlying possessions.
 - ii. A U.S. Certificate of Birth Abroad (FS-545, DS-135) or a Report of Birth Abroad of a U.S. Citizen (FS-240).
 - iii. A birth certificate or passport issued from:
 1. Puerto Rico, on or after January 13, 1941;
 2. Guam, on or after April 10, 1898;
 3. U.S. Virgin Islands, on or after February 25, 1927;

- 4. Northern Mariana Islands, after November 4, 1986;
- 5. American Samoa;
- 6. Swains Island; or
- 7. District of Columbia.
- iv. An unexpired U.S. passport.
- v. Certificate of Naturalization (N-550, N-57, N-578).
- vi. Certificate of Citizenship (N-560, N-561, N-645).
- vii. U.S. Citizen Identification Card (I-179, I-197).
- viii. Free Alabama Photo Voter Identification Card.

If the Commission is not satisfied with the authenticity of a copy of one of the documents in 262-X-4-.02 (13) a, it may request that the original be submitted for inspection.

- b. A person may be presumed to not be an alien who is unlawfully present in the U.S. if the person provides a copy of one of the following documents to the Commission for inspection:
 - i. A valid, unexpired Alabama driver's license.
 - ii. A valid, unexpired Alabama nondriver identification card.
 - iii. A valid tribal enrollment card or other form of tribal identification bearing a photograph or other biometric identifier.
 - iv. Any valid United States federal or state government issued identification document bearing a photograph or other biometric identifier, if issued by an entity that requires proof of lawful presence in the United States before issuance.
 - v. A foreign passport issued by a visa waiver country with the corresponding entry stamp and unexpired duration of stay annotation or an I-94W form by the United States Department of Homeland Security indicating the bearer's admission to the United States.

If the Commission is not satisfied with the authenticity of a copy of one of the documents in 262-X-4-.02 (13) b, it may request that the original be submitted for inspection.

- c. Submission of a copy of one of the following documents and subsequent positive verification in the Systematic Alien Verification for Entitlements (SAVE) system is proof of legal presence:
 - i. I-327 (Reentry Permit)
 - ii. I-551 (Permanent Resident Card)
 - iii. I-571 (Refugee Travel Document)
 - iv. I-766 (Employment Authorization Card)
 - v. Certificate of Citizenship
 - vi. Naturalization Certificate
 - vii. Machine Readable Immigrant Visa (with Temporary I-551 Language)
 - viii. Temporary I-551 Stamp (on Passport or I-94)
 - ix. I-94 (Arrival/Departure Record)
 - x. I-94 (Arrival/Departure Record) in Unexpired Foreign Passport
 - xi. Unexpired Foreign Passport
 - xii. I-20 (Certificate of Eligibility for Nonimmigrant (F-1) Student Status)

- xiii. DS2019 (Certificate of Eligibility for Exchange Visitor (J-1) Status)
 - xiv. Documents not included in this list will be examined on a case-by-case basis.
- d. Failure to provide this documentation within the requested time shall result in the non-approval of the compensation claim.
 - e. This rule shall be effective upon the filing date and apply to claims pending and/or claims received on or after the filing date.

262-X-4-.03 Contribution To Offense.

Authority:

Code of Alabama § 15-23-12(b) (1995), which provides:

Compensation otherwise payable to a claimant may be diminished or denied to the extent that the economic loss is recouped from collateral sources; or to the extent that the degree of responsibility for the cause of the injury or death is attributable to the victim as determined by the commission.

- (a) Compensation may be reduced or denied based on the victim's degree of contribution to the offense. The reduction or denial will be based on the extent of the degree of responsibility for the cause of injury or death attributable to the victim/claimant's actions and/or involvement in the events that led to the crime. Compensation may be reduced in whole or in part if contributory conduct is determined.
- (b) Eligibility for compensation can be affected by a victim/claimant's involvement in the events that led to the crime. The victim/claimant's actions do not have to be illegal to be deemed contributory conduct. Such actions must relate significantly to the occurrence that caused the victimization and be such that a reasonable or prudent person would know that the actions could lead to their victimization.
- (c) Contributory conduct is a voluntary action by the victim, which directly or indirectly, produced the victim's injury at the time of the victimization which gives rise to the compensation claim. This action may include, but is not limited to, provocation, drug use, alcohol intoxication, consent, or incitement by the victim.
- (d) Contributory conduct is a factor when the victim knowingly participated in conduct that:
 - (1) Caused, resulted in, or reasonably could have led to the specific crime which caused the victimization; or
 - (2) Was itself clearly wrongful or illegal, thereby placing him/herself in a position to be victimized; or
 - (3) Clearly put himself/herself into a situation where the crime was reasonably expected and/or a prudent person would have avoided.
- (e) Contributory conduct to the offense may be determined by the victim's actions or nature of the victim's involvement in the events leading up to victimization. The following factors may be considered in the determination of contributory conduct:

- (1) Alcohol intoxication that resulted in the use of poor judgment by the victim;
- (2) Drug use that resulted in the use of poor judgment by the victim;
- (3) If the offender verbally insulted the victim and the victim failed to retreat, a contribution factor may be assessed;
- (4) If it appears the victim was injured as a result of poor judgment or as a result of his/her conduct being less than that of a prudent person in the same situation, a contribution factor may be assessed;
- (5) If it appears that the victim first physically assaulted the offender, the victim's claim for compensation may be denied.

(f) The Commission may consider all information relevant to the circumstances, including, but not limited to:

- (1) Level of responsibility of the victim's conduct;
- (2) Foreseeability of the consequences of such conduct;
- (3) Ability to avoid the situation (Victim's failure to retreat or withdraw from situation where an option to do so existed.)
- (4) Whether there is a direct causal relationship between the victim's actions and his/her victimization.
- (5) Whether the criminally injurious conduct made the basis of the compensation claim occurred at a place known for illegal activity (shot house, house of gambling, house of prostitution or drug house) or arose out of acts involving violation(s) of federal, state, or municipal laws. A contribution factor shall not be accessed for persons who were in such areas for a legitimate purpose and not involved in any type of illegal activity.
- (6) Contribution to the offense will be determined by the actions of the victim at the time of or immediately preceding the crime.

262-X-4-.04 Compensation Awards - Amounts and Methods of Payment.

- (1) Compensation payable to a victim or claimant sustaining economic loss due to injury or death may not exceed a total of fifteen thousand dollars (\$15,000.00).
- (2) Compensation for lost wages may not exceed four hundred (\$400.00) dollars per week.
- (3) The Commission may provide for the payment to a claimant in a lump sum or installments. Outstanding eligible expenses will be paid directly to the service provider. Compensation payable to service providers for medical treatment may be compensated at a reduced rate. Outstanding charges for medical treatment, excluding psychiatric care, counseling, and dental treatment, may be compensated at a reduced rate of thirty percent (30%) of eligible charges up to a maximum amount of six thousand dollars (\$6,000). When the claimant has already paid out-of-pocket for medical treatment and services, the claimant may be fully reimbursed for all eligible expenses not to exceed \$15,000.
- (4) Future Economic Loss.

(a) Future economic loss is limited to \$400.00 per week for a maximum of 26 weeks. Future economic loss may be awarded if the victim was employed at the time of his/her victimization and the employment is verifiable.

(b) If the deceased victim leaves a dependent spouse and no dependent children, the total amount of the future economic loss may be paid to the dependent spouse.

(c) If the deceased victim leaves a dependent spouse and a dependent child or dependent children and the dependent spouse is the parent of all the victim's dependent children, then the total amount of the future economic loss may be paid to the dependent spouse for the benefit of himself/herself and the dependent child or dependent children.

(d) If the deceased victim does not leave a dependent spouse, but leaves dependent children, funeral/burial expenses may be paid prior to the payment of future economic loss for a dependent child or dependent children. After the payment of funeral/burial expenses, twenty-five percent (25%) of the remaining compensation benefits may be used for the compensation of the claimant's eligible expenses. The remaining compensation benefits will be apportioned equally among the dependent children for whom a request for future economic loss is made within the one-year filing deadline. Dependent children who request future economic loss after the one-year filing deadline may not receive compensation benefits. If there are compensation funds remaining after the one-year filing deadline, they may be equally apportioned and distributed to the deceased victim's dependent children who made a request for future economic loss prior to the expiration of the one-year filing deadline.

(e) If the deceased victim leaves a dependent spouse and a dependent child or dependent children for whom the parent or legal guardian is someone other than the dependent spouse, funeral/burial expenses may be paid prior to the payment of future economic loss for a dependent child or dependent children. After the payment of funeral/burial expenses, fifty percent (50%) of the remaining compensation benefits may be used for the compensation of the dependent spouse's eligible expenses. The remaining compensation benefits will be apportioned equally among the dependent children for whom a request for future economic loss is made within the one-year filing deadline. Dependent children who request future economic loss after the one-year filing deadline may not receive compensation benefits.

(f) Legal proof that the dependent spouse was married to the deceased victim at the time of the victim's death will be requested. Legal proof that a dependent child was the legal child of the deceased victim will be requested. For example: marriage certificate, birth certificate, or court order.

- 1) A claimant that asserts a common-law marriage with a deceased crime victim must provide proof of the marriage by submitting one of the following:
 - a) an official Internal Revenue Service tax transcript indicating the claimant and deceased victim filed as married; or
 - b) affidavits from three blood relatives within the second degree of consanguinity of the deceased crime victim swearing that the claimant and the deceased crime victim presented themselves as married to each other. If the deceased crime victim does not have three blood relatives within the second degree of consanguinity, the claimant may submit an affidavit or affidavits from blood relatives within the third degree of

consanguinity. If the deceased crime victim does not have three blood relatives within the third degree of consanguinity, the claimant may submit an affidavit or affidavits from blood relatives within the fourth degree of consanguinity. Birth certificates must be submitted to prove the relationship of the affiant to the deceased crime victim.

- i) First-degree relatives include a crime victim's parents and children.
- ii) Second-degree relatives include a crime victim's siblings and half-siblings.
- iii) Third-degree relatives include a crime victim's nieces, nephews, aunts, and uncles.
- iv) Fourth-degree relatives include a crime victim's first cousins, great aunts, great uncles, grandnieces and grandnephews.

(g) All awards for future economic loss shall be diminished or denied to the extent that the future economic loss is recouped from a collateral source.

(h) At the discretion of the Commission, future economic loss may be paid in a lump sum, but only upon a finding that the lump sum award will promote the best interest of the claimant.

(i) When the Commission determines that compensation for future economic loss will be paid in installments, payments may be made in quarterly installments of \$2,500 over a period of one year or until the total compensation award for future economic loss is paid to the recipient(s). The one-year period for the purpose of installment payments will begin the day the compensation award is approved. An award payable in installments for future economic loss may be modified by the Commission upon its finding that a material and substantial change of circumstances has occurred.

(5) No more than five thousand dollars (\$5,000.00) may be paid for expenses related to funeral, cremation, or burial. For incidents of criminally injurious conduct occurring on or after October 1, 2014, through July 8, 2020, no more than seven thousand dollars (\$7,000.00) may be paid for expenses related to funeral, cremation, or burial. For incidents of criminally injurious conduct occurring on or after July 9, 2020, no more than five thousand dollars (\$5,000.00) may be paid for expenses related to funeral, cremation, or burial. Food expenses shall not be considered expenses related to funeral, cremation, or burial.

(a) The following payment limitations for funeral, cremation, and burial expenses apply:

- 1. \$1,000 maximum award for victim's headstone;
- 2. \$250 maximum award for funeral flowers;
- 3. \$200 maximum award for burial clothes for the victim.

(6) Approved claims will be paid in the order of their approval by the Commission as funds become available.

(7) Payments may be made in lump sums or in installments.

(8) Lost wages shall be verified by obtaining written documentation from the employer or by submission of a W2 tax document. A tax transcript from the IRS is required if the person seeking reimbursement of his/her lost wages is self-employed.

(9) The claimant may, with the Commission's approval, elect to be paid for lost wages, future economic losses, replacement services loss, etc., before the service providers are paid.

(10) Annual leave, sick leave, personal leave or holidays shall not be considered a collateral source and may be reimbursed by the Commission.

(11) Lost Wages.

- (a) The victim's work loss caused by the crime may be considered for reimbursement.
- (b) The claimant or immediate family member may apply for his/her lost wages if he/she took time off from work to care for the victim if the victim was a minor, or a medical professional provides written confirmation that the care was recommended.
- (c) If the victim died as a result of the crime, the victim's dependent spouse and dependent children may apply for future economic loss.
- (d) Anticipated work may be considered for compensation when accompanied by documentation certifying a definite start date.
- (e) The victim's, claimant's, and immediate family members' lost wages may be awarded for work loss due to receiving medical treatment as a result of the crime; mental health treatment as a result of the crime; attendance of grand jury proceedings for three days if not subpoenaed; attendance of grand jury proceedings for as many days as required by subpoena, attendance of the offender's preliminary hearing, arraignment, bond hearing, a hearing on any pretrial motion, trial, or any post judgment proceeding; and the offender's parole hearing.
- (f) Proper documentation is required for consideration of all lost wages requests, including, when applicable: confirmation of court attendance; a parole notification letter; employer's confirmation of work loss; a self-employment affidavit; or a written excuse from a licensed medical professional or licensed mental health provider.

(12) Lost Wages Payment Limitations.

- (a) For incidents of criminally injurious conduct occurring on or after October 1, 2014, through July 8, 2020, lost wages are limited to \$600.00 per week for a maximum of 52 weeks. For incidents of criminally injurious conduct occurring on or after October 1, 2014, through July 8, 2020, the maximum award for lost wages is \$20,000. For incidents of criminally injurious conduct occurring on or after July 9, 2020, lost wages are limited to \$400.00 per week for a maximum of 26 weeks.
- (b) Life insurance shall be considered a collateral source for all claims. If life insurance does not fully compensate the deceased victim's dependents for the eligible expenses they incurred as a result of the victimization, the remaining eligible expenses may be eligible for compensation.

(13) Collateral Source.

- a. Life insurance shall be considered a collateral source for compensation.
- b. When determining if a collateral source has fully compensated a victim or a deceased victim's dependent, a one-year period of a victim's lost wages or other income will be used for calculation of the collateral source offset.
- (c). Charitable donations shall not be considered a collateral source for compensation. If an eligible expense has been paid with charitable donations, the Commission will not reimburse the expense. The Commission only provides compensation benefits for payment or reimbursement of actual expenses.

(14) Moving and Temporary Relocation Expenses

- (a) The Commission may award moving expenses in cases in which the crime occurred in the victim's home, the victim has a reasonable fear for his/her life if he/she does not move from the home, or moving the victim's personal belongings is necessary. Written estimates and/or receipts are required for payment of moving expenses.
- (b) The Commission may award temporary relocation expenses when the victim's home has been temporarily made uninhabitable as a direct result of the crime. Claimants/victims who qualify for temporary relocation expenses may receive per diem at a rate of \$100. If the size of the claimant's/victim's family necessitates the rental of two hotel rooms or larger accommodations, the Commission may consider awarding more than per diem for the temporary relocation expense. A copy of the hotel bill, credit card receipt, or other verifiable document is required for verification.
- (c) Moving and temporary relocation expenses may not exceed a combined total \$1,000.

(15) Travel Expenses.

- (a) The maximum award for travel expenses is \$3,000. Airline tickets or mileage at the Internal Revenue Service's standard mileage rate and a \$100 per diem rate and lost wages may be provided for eligible travel expenses. Hotel receipts must be supplied in order to award \$100 per diem. Airfare will be reimbursed at coach rates only. Travel expenses for the victim, immediate family member(s), or person(s) of the victim's choosing, may be awarded to attend grand jury proceedings for three days if not subpoenaed, grand jury proceedings for as many days as required by subpoena, the offender's preliminary hearing, arraignment, bond hearing, a hearing on any pretrial motion, trial, or any post judgment proceeding. When the victim is deceased, travel may be awarded to immediate family members. Travel may be allowed for immediate family members to travel attend the offender's trial or any post judgment proceeding. When the prosecutor's office or any other entity pays for all or part of the victim's or immediate family member's travel expenses, that amount shall be deducted from the compensation award for travel expenses. Travel may be allowed for medical and psychological treatment that is needed as a result of the victimization. Travel required to procure needed services may be considered for the victim, claimant, and immediate family members.
- (b) Travel expenses and lost wages for the victim, immediate family member(s), or person(s) of the victim's choosing, may be awarded for attendance of the offender's parole hearing. When the victim is deceased, travel expenses and lost wages may be awarded to immediate family members or victim representatives. Eligible parole travel expenses shall be reimbursed at the current Internal Revenue Service's standard mileage rate, coach rate for airfare, and per diem at a rate of \$100. These requests will only be considered as a supplemental to an original claim. (There must be a timely, approved compensation claim for parole travel expenses to be considered. The Commission will not consider parole travel expenses filed as an original

claim.) 262-X-4-.04 (15)(b) shall be retroactive to the date of the Commission's inception.

(c) Travel expenses for immediate family members to attend the victim's funeral may be considered for reimbursement. The Commission may award up to seven days of per diem for funeral travel. Eligible funeral travel expenses may be reimbursed at the current Internal Revenue Service's standard mileage rate, coach rate for airfare, and per diem at a rate of \$100.

(d) To qualify for reimbursement for mileage, the destination must be greater than ten miles from the home (or travel starting point) of the person requesting compensation.

(e) Rental Cars. When the person requesting compensation has rented an automobile for eligible travel expenses, the person may be reimbursed for mileage or a daily rental car fee of \$35. Under no circumstances shall the requesting person receive both.

Mileage will be reimbursed at the current Internal Revenue Service's standard mileage rate.

(16) The Commission does not provide property reimbursement or replacement.

1) Security enhancement. Windows and locks for real property owned by the claimant/victim; and windows and locks for rental property leased by the claimant/victim when the claimant/victim is financially responsible for repair(s) to the leased property.

2) Prescription eyeglasses. The maximum award for damaged prescription eyeglasses is \$350. A receipt/estimate must be provided for the eyeglasses.

(17) Exclusion from Payment. The following expenses shall not be eligible for compensation:

a) Any expense related to the prosecution of the criminal case. (Examples: expert testimony and witnesses; DNA testing and analysis; evidence photographs and videos; blood samples and travel expenses for witnesses subpoenaed to testify.)

b) All legal fees shall be excluded from payment except legal fees incurred to establish a legal guardian for the victim as defined by Alabama Administrative Code (ACVCC) 262-X-4-.04(22).

(18) Replacement services loss may not exceed four hundred (\$400.00) dollars per week. For incidents of criminally injurious conduct occurring on or after October 1, 2014, through July 8, 2020, compensation for replacement services loss may not exceed six hundred (\$600.00) dollars per week. For incidents of criminally injurious conduct occurring on or after October 1, 2014, through July 8, 2020, replacement services loss is limited to a maximum of 52 weeks. For incidents of criminally injurious conduct occurring on or after July 9, 2020, replacement services loss may not exceed two hundred (\$200.00) dollars per week for a maximum of 26 weeks.

(19) Supplemental awards: The expenses submitted in the supplemental claim must be related to the original injury and must be supported by documentation.

(20) Checks issued by the ACVCC may contain the following language: "Cashing this check constitutes payment in full." This shall not be construed to apply to future compensation benefits for which the victim/claimant may be eligible. It shall be the responsibility of the victim/claimant to assert this defense in any type of collection proceeding against him/her. If

the service provider refuses the check, the compensation shall be paid directly to the victim/claimant.

(21) When a victim/claimant is approved for charity by a service provider, the charity approval shall be considered a collateral source and compensation shall not be paid to the service provider.

(22) When the claimant must seek legal guardianship of a minor and/or disabled victim to qualify for crime victims' compensation benefits, the Commission may consider reimbursement of legal fees incurred for obtaining guardianship. The maximum that may be awarded for legal fees is \$1,000. Legal fees incurred for any reason other than obtaining guardianship shall not be eligible for reimbursement. The Commission shall not reimburse legal fees if the claimant is not granted guardianship of the victim.

(23) Bereavement Leave. Bereavement leave may only be granted to the victim's immediate family members. A victim's immediate family member may be granted compensation for a maximum of four weeks of lost wages without a doctor's excuse. A doctor's excuse must be provided for lost wages in excess of four weeks to be considered for reimbursement. Employer verification is required for all bereavement leave requests.

(24) Crime Scene Clean-Up. The Commission may provide compensation to an individual or to the service provider if the expense is outstanding, for the reasonable costs to clean the scene of the crime in an amount not to exceed \$2,500. The service provider must be certified, licensed, and in compliance with all applicable federal and state regulations. Crime scene clean-up expenses may only be awarded for the cleaning and removal of biohazards.

(25) Birth Certificates. Reimbursement may be provided for one certified copy of the claimant's and/or victim's birth certificate(s) obtained after the date of the criminally injurious conduct made the basis of the claim. The birth certificate(s) must have been obtained for the purpose of applying for crime victims' compensation benefits.

(26) Government-Issued Photo Identification. Reimbursement may be provided for one state-issued driver's license or one state-issued non-driver's ID obtained after the date of the criminally injurious conduct made the basis of the claim.

(27) Reimbursement may be provided for certified victims of human trafficking and all qualified victims of violent crime for the removal/cover-up of tattoos that were physically forced on them by the alleged offender in the incident made the basis of the compensation claim. The Commission shall decide reasonable reimbursement on a case-by-case basis. The provider must be licensed by the appropriate governmental body to perform the service rendered to qualify for payment/reimbursement.

(28) Lost Wages for Victims of Sexual Assault. A victim of sexual assault may be granted compensation for a maximum of two weeks of lost wages without a doctor's excuse. A doctor's excuse must be provided for lost wages in excess of two weeks to be considered for reimbursement. Employer verification is required for all lost wages requests.

(29) Payment to Non-Claimants. A claimant may assign compensation benefits to a person for allowable expense to the extent that the compensation benefits are for the cost of products, services, or accommodations necessitated by the criminally injurious conduct made the basis of the claim. The claimant must submit a completed Permission for Another Individual to Receive Payments on a Limited Basis form for payment to be issued to the person who incurred the expense.

262-X-4-.05 Emergency Awards.

The Commission may make or authorize the executive director to make in advance an emergency award of compensation to the applicant prior to taking action on an application or pending a final decision when it appears that the claim is one for which compensation is probable and undue hardship will result to the applicant if immediate payment is not made. The Commission may consider undue hardship to exist in the following circumstances:

- (a) The applicant is without income at the time of application or immediately prior thereto resulting in loss of food, heat or shelter;
- (b) The applicant is in fear or danger for his/her life due to his/her victimization; or
- (c) The applicant cannot receive emergency services without emergency payment;
- (d) Crime scene clean up shall be considered an emergency service.
- (e) Prescription drugs that have been prescribed as a result of victimization shall be considered an emergency product. A copy of the prescription and the pharmacy's statement of the cost of the drug must be received by the Commission for the prescription expense to be considered for emergency payment. Prescriptions for pre-existing medical conditions shall not be considered for reimbursement.
- (f) Moving expenses may be considered an emergency service for applicants. Moving expenses may be considered as an emergency expense for applicants who have moved and applicants who have not yet moved. Proof of moving expenses must be received by the Commission for the moving expense to be considered for emergency payment.

The applicant may request in the initial application that consideration be given for an emergency award and provide justification for such award. A decision denying an emergency award shall not be appealable. The amount of such emergency award shall not exceed one thousand dollars. An emergency award shall be deducted from the final compensation made to the applicant. If the final award is less than the amount of the emergency award, the applicant must repay the excess award to the Commission. All emergency awards are subject to the Code of Ala. 1975.

262-X-4-.06 Garnishment And Assignment Of Compensation Awards.

- (1) An award shall not be subject to state or municipal taxation or to execution, attachment, or garnishment, except as same may pertain to an obligation for the support of dependent children or as the same may pertain to a creditor which has provided products, services or accommodations, the cost of which are included in the award.

(2) An assignment by the claimant to any future award is unenforceable, except:

(a) an assignment of any award for work loss to assure payment of court ordered child support; or

(b) an assignment of any award for allowable expense to the extent that the benefits are for the cost of products, services or accommodations necessitated by the injury or death on which the claim is based and are provided or to be provided by the assignee.

262-x-4-.07 Mental Health Benefits.

(1) Qualified Providers

The Commission may provide reimbursement/payment of therapy expenses if the therapy was provided by a psychiatrist, psychologist, professional counselor, or clinical social worker that is licensed by the appropriate governmental licensing body. The clinician must have an active license at the time the therapy was provided in order to qualify for reimbursement/payment of therapy expenses.

(2) Appropriate Treatment

(a) ACVCC must receive a letter from the clinician certifying that the victim is engaged in necessary therapy due to his/her victimization.

(b) Quarterly updates from the clinician certifying that the treatment is necessary and the result of victimization must be submitted in order for payment to be considered.

(c) The clinician must provide an itemized bill for treatment sessions.

(3) Eligibility for Payment. The claimant, victim, and/or the victim's immediate family members may be eligible for mental health benefits.

(4) Cost Containment

(a) Individual Therapy Rates:

\$80.00 per hour- Licensed Counselor/Social Worker;

\$100.00 per hour- Psychologists (Ph.D.);

\$125 per hour- Psychiatrists (M.D.).

(b) Group Therapy Rates: \$ 60.00 per hour.

(c) Reimbursement for therapy expenses shall not exceed \$6,250, or 50 sessions. Reasonable efforts should be made to inform victims/claimants that therapy services are provided by community mental health centers on a sliding fee scale. Inpatient treatment shall be considered

a medical condition for purposes of compensation. When the victim is a minor, the claimant shall be limited to 15 individual therapy sessions, unless the victim is deceased. The 15 individual therapy sessions limit shall not apply to homicide claims.

(d) Supplemental therapy bills may be submitted to ACVCC as accrued, for consideration of payment.

(e) When therapy services have been provided by county mental health centers, ACVCC will only pay what has been charged on a sliding fee scale.

(5) Criteria for Payment of Therapy Expenses. Eligibility for payment of therapy expenses is based upon receipt of the following documentation:

- (a) a written statement from the therapist indicating that the therapy is directly related to the victimization;
- (b) an itemized bill from the therapist indicating the dates, times and charges for therapy; and
- (c) evidence that the therapist is licensed by the appropriate governmental licensing body.

(6) Therapy via Videoconference. The Commission may reimburse for therapy services rendered via videoconference when the therapy is compliant with all applicable laws and regulations.

(7) Interpreters for Victims/Claimants with Limited English Proficiency (LEP).

- (a) The Commission may provide reimbursement for reasonable fees incurred for the use of interpreters by LEP victims/claimants who seek therapy services as a direct result of the crime. The Commission will determine if the charges are reasonable on a case by case basis. The availability of interpreters in the LEP victim's/claimant's primary or home language will be considered in determining if the charges are reasonable.
- (b) In order to qualify for reimbursement, the interpreter must be:
 - (1) currently certified by any state, regional or national interpreting association, board or body as proficient in the LEP individual's primary or home language, or
 - (2) found to be qualified to interpret in the LEP individual's primary or home language by a municipal, county, state, or federal court.
 - (3) Unrelated by blood or marriage to the claimant and/or victim.

262-x-4-.08 Out-of-State Claims.

a. Pursuant to § 15-23-3 (2)b of the *Code of Alabama*, criminally injurious conduct includes an act occurring or attempted outside the geographical boundaries of this state in another state of the United States of America which is punishable by fine, imprisonment, or death and which results in personal injury or death to a citizen of this state, and shall include an act of terrorism, as defined in Section 2331 of Title 18, United States Code, committed outside of the United States, against a resident of this state; provided however, the citizen at the time such act was committed had a permanent place of residence within the geographical boundaries of this state, and in addition thereto any of the following circumstances apply, that the citizen:

1. Had a permanent place of employment located within the geographical boundaries of this state.

2. Was a member of the regular Armed Forces of the United States of America; or the United States Coast Guard; or was a full-time member of the Alabama National Guard, Alabama Air National Guard, U.S. Army Reserve, U.S. Naval Reserve, or U.S. Air Force Reserve.

3. Was retired and receiving Social Security or other retirement income.

4. Was 60 years of age or older.

5. Was temporarily in another state of the United States of America for the purpose of receiving medical treatment.

6. Was temporarily in another state of the United States of America for the purpose of performing employment-related duties required by an employer located within the geographical boundaries of this state as an express condition of employment or employee benefits.

7. Was temporarily in another state of the United States of America for the purpose of receiving occupational, vocational, or other job-related training or instruction required by an employer located within the geographical boundaries of this state as an express condition of employment or employee benefits.

8. Was a full-time student at an academic institution, college, or university located in another state of the United States of America.

9. Had not departed the geographical boundaries of this state for a period exceeding 30 days or with the intention of becoming a citizen of another state or establishing a permanent place of residence in another state.

b. The term "criminally injurious conduct" shall not mean: An act committed outside the geographical boundaries of this state upon a person who was not at the time a citizen of Alabama, or an act committed outside the geographical boundaries of this state upon a person who at the time had departed the geographical boundaries of this state for the purpose of becoming a citizen of, or establishing a permanent place of residence in, another state.

c. For the purpose of determining eligibility for out-of state compensation claims, a citizen of the State of Alabama is defined as all citizens of the United States with a permanent place of residence in the State of Alabama.

d. All collateral sources must be considered prior to payment of compensation benefits for incidents of criminally injurious conduct occurring outside the geographical boundaries of the State of Alabama.

262-x-4-.09 Homicide Victims and Minor Victims

a. Homicide Victims

1. A homicide victim's next-of-kin may act as claimant and file for compensation benefits. The person legally authorized to act on a homicide victim's behalf may file for compensation benefits. For example: the next-of-kin of the homicide victim or the executor of the homicide victim's estate.
2. If a homicide victim has multiple relatives with the same degree of consanguinity, the relative that files for compensation benefits first shall be the claimant.

b. Minor Victims

When the victim of criminally injurious conduct is a minor, the minor victim's parent or legal guardian may act as claimant and file for compensation benefits.

262-x-4-.10 Reconsideration of Claims Filed on Behalf of Minor Victims, Incompetent Victims, or Deceased Victims

1. AUTHORITY

Code of Alabama § 15-23-12(d) (1995), which provides:

The commission, on its own motion or on request of the claimant, may reconsider a decision granting or denying an award or determining its amount. An order on reconsideration of an award shall not require a refund of amounts previously paid, unless the award was obtained by fraud. The right of reconsideration does not affect the finality of a commission decision for the purpose of judicial review.

2. Compensation cannot be paid to a claimant who is ineligible for compensation benefits. When an ineligible claimant files for compensation benefits on behalf of a minor victim, incompetent victim, or deceased victim, the claim must be not approved.
3. The Commission may reconsider a decision denying or reducing a compensation award for a minor victim, incompetent victim, or deceased victim due to the ineligibility of the claimant, in the event of either of the following:

- a. The minor victim reaches the age of majority, or can otherwise legally act on his/her own behalf;
- b. A person (other than the ineligible claimant) who is legally authorized to act on behalf of a minor victim, incompetent victim, or deceased victim files for compensation benefits on behalf of the victim.

CHAPTER 262-X-5 COOPERATION WITH LAW ENFORCEMENT

262-X-5-.01 Cooperation With Law Enforcement.

The Commission, upon finding that the claimant or victim has not fully cooperated with appropriate law enforcement agencies or the Commission staff in the processing of a claim, the Commission may deny, withdraw, or reduce an award of compensation. The Commission shall determine the extent of the cooperation by the victim and the following criteria shall be used:

- (a) The claimant's failure to assist and cooperate with the prosecution of the case or to appear as a witness shall constitute noncooperation and the claim shall be denied.
- (b) In instances in which the claimant initially fails to cooperate with law enforcement but subsequently begins to cooperate, compensation may be reduced or denied to the extent which his/her failure to cooperate hindered the investigation and/or prosecution of the case.
- (c) If law enforcement indicates that the claimant was reluctant to give information pertaining to the crime; failed to appear when requested, without good cause, gave false or misleading information, or attempted to avoid law enforcement, the award shall be denied.
- (d) A claimant's failure to cooperate with ACVCC's processing of the claim shall also be a basis for rendering a claim ineligible.

CHAPTER 262-X-6 COMPENSATION BENEFITING OFFENDER

262-X-6-.01 Compensation Benefiting Offender.

Compensation shall not be awarded if the award would unjustly benefit the offender or accomplice of the offender.

262-X-6-.02 Domestic Abuse.

No claim resulting from an incident of domestic abuse shall be denied based solely upon a finding that a claimant resides or has resided with the alleged offender of the crime for which the claim has been filed. The Commission shall not deny payments to third party vendors based solely upon a finding that the victim and offender are maintaining a relationship.

- (a) Procedures. When victims of domestic abuse have submitted claims for lost wages, and where the Commission finds that the victim is living with the offender, or if the Commission is unable to determine

whether a claimant is living with the offender of the crime for which the claim is filed, the Commission shall, by mail, request that the claimant clarify whether the offender is residing with the claimant. The Commission shall, as part of this request, collect information, which determines whether there has been, and continues to be criminal justice, mental health, or human service program involvement.

(b) Claim Determination. When an individual who has committed domestic violence is residing with a claimant who has requested lost wages, the Commission shall not deem the claim ineligible based solely on the cohabitation if there is reasonable evidence that the offender has been held accountable through the criminal justice system, human services involvement or intervention; or when there is evidence that the payment of lost wages will sustain the victim's living expenses. No claim shall be denied solely because it succeeds one previous claim for victimization by the same offender.

(c) The continuance of a relationship between the victim and offender shall not in itself preclude payment.

CHAPTER 262-X-7 RECOVERY FROM COLLATERAL SOURCES

262-X-7-.01 Recovery From Collateral Sources.

(1) If compensation is awarded, the Commission shall be subrogated to all the rights of a claimant to receive or recover from a collateral source to the extent that compensation was awarded.

(2) If the claimant received compensation from a source other than the Commission after the Commission has made an award to the claimant, the claimant will be required by law to reimburse the Alabama Crime Victims Compensation Commission Fund. Failure to do so will result in a Class C felony.

(3) If a claimant files a civil suit to recover damages related to the criminally injurious conduct upon which compensation has been claimed or awarded, the claimant shall give the Commission written notice within 15 days of the filing of the action. The commission may intervene in the proceedings as a complainant to recover the compensation awarded. If the Commission does give notice, attorneys fees may be awarded in an amount not to exceed fifteen percent (15%) of the amount subrogated to the Commission.

(4) If the offender is ordered to pay restitution to the claimant, the claimant must notify the Commission of this action in writing.

(5) In the case where compensation has already been paid to the claimant, the judge may award restitution to be paid directly to the Alabama Crime Victims Compensation Commission Fund.

(6) Whenever compensation is awarded to a claimant who is entitled to restitution from a criminal defendant, the Commission may initiate restitution hearings in such criminal proceedings or intervene in same. The Commission shall be entitled to receive restitution in such proceedings to the extent that compensation was awarded. The Commission shall be subrogated to all the rights and remedies of such claimant for the collection of restitution to the extent compensation was awarded; provided, however, the Commission shall be exempt from the payment of fees or other charges for the recording of restitution orders in the offices of the judges of probate.

(7) The Commission may reduce an award amount based on the amount already received from a collateral source contribution, unless the claimant was receiving or was entitled to receive such benefits prior to the incident for which a claim is filed.

(8) In the event the claimant recovers compensation, other than through the provisions of this chapter, for injuries or death resulting from criminally injurious conduct, the claimant shall retain, as trustee for the Commission, so much of recovered funds as necessary to reimburse the Alabama Crime Victims Compensation Commission Fund to the extent that compensation was awarded to the claimant from that fund.

CHAPTER 262-X-8 PENALTIES FOR FILING FALSE CLAIMS

262-X-8-.01 Penalties For Filing False Claims.

(1) Any person who shall knowingly furnish any false information to the Alabama Crime Victims Compensation Commission or to any member, agent or employee thereof with the intent to defraud said Commission, or with the intent to obtain an award of compensation for a person not entitled to receive same, shall be guilty of a Class C felony.

(2) Any person who shall knowingly fail or omit to disclose a material fact or circumstance to the Alabama Crime Victims Compensation Commission or to any member, agent or employee thereof which is material to a claim for an award of compensation with the intent to defraud the Commission or with the intent to cause a person to receive an award of compensation to which such person is not entitled shall be guilty of a Class C felony.

CHAPTER 262-X-9 APPEALS PROCEDURE

262-X-9-.01 Appeals Procedure. - *REPEALED*

CHAPTER 262-X-10 ATTORNEY'S FEES

262-X-10-.01 Attorney's Fees.

If a claimant or victim chooses to be represented by an attorney, said claimant or victim will be responsible for the payment of his or her attorney's fees.

CHAPTER 262-X-11 SEXUAL ASSAULT

262-X-11-.01 Sexual Assault Examination Payment Program.

Program Description: This section provides for payment of the initial forensic examination which is performed on victims of sexual violence for the purpose of obtaining evidence to potentially pursue criminal charges against sexual assault offenders and for the prevention and treatment of venereal disease. Adult and child sexual assault examinations may be paid pursuant to the below sections.

AUTHORITY

Code of Alabama § 15-23-5 (24) (1995), which provides:

The commission shall have all the powers and privileges of a corporation and all of its business shall be transacted in the name of the commission. In addition to any other powers and duties specified elsewhere in this article, the commission shall have the power to: Provide for the cost of medical examinations for the purpose of gathering evidence and treatment for preventing venereal disease in sexual abuse crimes and offenses.

1) DEFINITIONS

- a) Sexual Assault Nurse Examiner: a registered nurse who has received specialized training or certification that qualifies him/her to conduct sexual assault examinations for adult and child victims of sexual assault for the purpose of gathering and preserving evidence for potential use in a criminal prosecution. A Sexual Assault Nurse Examiner may also administer prophylaxis against venereal disease.
- b) Sexual Assault Examination: a physical examination performed by a registered nurse or physician in a hospital or medical clinic or a Sexual Assault Nurse Examiner in a SANE facility on adult victims of sexual assault for the purpose of gathering and preserving evidence for potential use in a criminal prosecution and the treatment and prevention of venereal disease.
- c) Sexual Assault Nurse Examiner Fee: Fee paid for the professional services of a Sexual Assault Nurse Examiner.
- d) SANE Facility: A community or hospital-based program that provides for the collection and preservation of evidence in cases of sexual violence, as well as the treatment and prevention of venereal disease in a compassionate, victim-sensitive setting.
- e) Child Sexual Assault Examination: a physical examination performed by a registered nurse or physician in a hospital or medical clinic or a Sexual Assault Nurse Examiner in a SANE facility on a child victim of sexual assault who is less than eighteen years of age for the purpose of gathering and preserving evidence for potential use in a criminal prosecution and the treatment and prevention of venereal disease.

2) COLLATERAL SOURCE

- a) Any expense associated with a sexual assault examination covered or paid by a collateral source will not be reimbursed by the Commission.
- b) Code of Alabama § 15-23-3 (13) (1995) defines collateral source as follows:

(a) COLLATERAL SOURCE. Source of income, financial or other benefits or advantages for economic loss other than the compensation paid by the compensation commission which the claimant has received or is entitled to receive or is readily available to the claimant, from any one or more of the following:

- a. The offender.
- b. The government of the United States or any agency thereof, in the form of benefits, such as Social Security, Medicare and Medicaid, a state or any of its political subdivisions or an instrumentality of two or more states, unless the law providing for the benefits or advantages makes them excessive or secondary to benefits under this article.
- c. Any temporary nonoccupational disability insurance.
- d. Workers' compensation.
- e. Wage continuation programs of any employer.
- f. Proceeds of a contract of insurance payable to the claimant for loss which the victim sustained because of the criminally injurious conduct.
- g. A contract providing prepaid hospital and other health care services or benefits for disability.

c) Any collateral source available for the payment of a sexual assault examination must be utilized prior to submitting a sexual assault examination to the Commission's Sexual Assault Examination Payment Program.

i) A hospital, medical clinic, or SANE facility should not bill the victim of sexual violence for the sexual assault examination. Alabama Attorney General Troy King's *Protocol for the Examination and Treatment of Victims of Sexual Assault* states "victims should not be billed for sexual assault examinations." *Alabama Attorney General Troy King's Protocol for the Examination and Treatment of Victims of Sexual Assault*, page 20.

3) ELIGIBILITY AND PAYMENT PROCEDURES

a) Sexual assault examinations performed on or after July 27, 1995, may be considered for payment.

b) Exams Performed in Hospitals and Medical Clinics

i) Sexual assault examinations performed by a registered nurse or physician in a hospital or medical clinic for the purpose of gathering evidence and treating and preventing venereal disease will be considered for payment.

(1) Hospitals and medical clinics must submit the current version of an UB form, itemized bill, and medical records.

- ii) Sexual assault examinations performed in a hospital or medical clinic will be reviewed to determine the reasonableness and eligibility of the charges.
 - (1) If after the Commission's review of the charges, they are found to be charged at an excessive rate and/or not rendered for the purpose of gathering evidence and/or treating and preventing venereal disease, the charges will be denied for payment.
 - iii) If after the Commission's review of the charges, it is determined that they do not comply with the Alabama Attorney General's *Protocol for the Examination and Treatment of Victims of Sexual Assault*, the charges will be denied for payment.
- c) Exams Performed by a Sexual Assault Nurse Examiner (SANE).
 - i) Each itemized bill or statement for a sexual assault examination will be considered for payment in the order that it is received.
 - ii) Each itemized bill or statement will be reviewed for accuracy and to determine the appropriate payment category. The itemized bill or statement will be paid based upon the payment category the Commission determines is appropriate.
 - iii) The Commission will provide reimbursement for "Jane Doe" sexual assault examinations performed on adult victims.
 - iv) The Commission will not reimburse for "Jane Doe" sexual assault examinations for children.
 - v) Each itemized bill or statement must identify the International Classification of Diseases (ICD-9) code.
 - vi) Each billed procedure, service or supply/medication must be itemized.
 - vii) Each billed procedure, service or supply/medication must include the appropriate Physicians' Current Procedural Terminology (CPT) code.
 - viii) The initial forensic examination will be considered for payment. Only services rendered, and medications provided "for the purpose of gathering evidence and treatment for preventing venereal disease in sexual abuse crimes and offenses" will be considered pursuant to the Commission's Sexual Assault Examination Payment Policy.
 - ix) Each itemized bill or statement must include a copy of the completed Sexual Assault Information Form (AL102) that is included in the State of Alabama Collection Kit provided by the Alabama Department of Forensic Sciences or equivalent documentation. Alabama Department of Forensic Sciences provides collection kits free of charge and payment will not be provided for the kits.
 - x) Signed, written confirmation from an employee of the SANE facility that the sexual assault was reported to the Department of Human Resources (DHR) or law enforcement must be provided in cases in which the victim is a minor. If confirmation is not received, the sexual assault examination will not be considered for payment.

d) Referrals from Hospitals and Medical Clinics

- i) When a hospital or medical clinic refers a victim of sexual violence to a SANE facility, the SANE facility will be paid for the cost of the sexual assault examination.
- ii) When a hospital or medical clinic and a SANE facility perform a sexual assault examination for the same incident, the SANE facility will be paid for the cost of the sexual assault examination. If the hospital or medical clinic administered medication and the SANE facility did not administer medication, the hospital or medical clinic may be paid the difference between the cost of an exam with medication and the cost of an exam without medication for the appropriate payment category.
- iii) The Commission will not pay a hospital or medical clinic and a SANE facility a duplicate fee for the same incident through the Sexual Assault Examination Payment Program.

4) COLLECTION OF EVIDENCE WITHIN 72 HOURS

- a) If it is determined that the sexual assault took place more than 72 hours prior to the sexual assault examination, the use of an evidence collection kit may not be necessary. *Alabama Attorney General' Alabama Protocol for the Examination and Treatment of Victims of Sexual Assault.*
- i) The reasonableness of the charges for sexual assault examinations performed after 72 hours will be determined on a case-by-case basis.
 - (1) The age, mental capacity, and the victim's ability to seek a sexual assault examination within 72 hours of the assault will be considered when making a determination regarding the reasonableness of a sexual assault exam performed more than 72 hours after the sexual assault.

5) INELIGIBLE EXPENSES

- a) The following expenses are not eligible pursuant to the Commission's Sexual Assault Examination Payment Program:
 - i) treatment for injuries;
 - ii) medication for any purpose other than the treatment and prevention of venereal disease;
 - iii) hospital admissions.
- b) All sexual assault victims should be provided a crime victims' compensation application. Expenses that are ineligible pursuant to the Commission's Sexual Assault Examination Payment Program may be eligible for crime victims' compensation benefits.

6) FALSE REPORTS

- i. a) The Commission will not compensate for a sexual assault examination if it is determined that a rape or sexual assault did not occur. Examples of false reports include, but are not limited to, consensual sexual contact and no sexual contact.

7) SEXUAL ASSAULT EXAMINATIONS CONDUCTED ON ALLEGED PERPETRATORS/OFFENDERS

- (1) The Commission does not provide for the cost of sexual assault examinations performed on alleged perpetrators/offenders.

8) SEXUAL ASSAULT EXAMINATION PAYMENT CATEGORIES

- a) Child Sexual Assault Examination Without Medication - \$400
 - i) This fee includes exam, nurse examiner fee, pregnancy test, microscopic sperm screening, 14 Fr Foley Hymenal Exam, and drug screen.
 - ii) If the itemized bill is less than \$400, the lesser amount of the itemized bill will be paid.
- b) Adult Sexual Assault Examination Without Medication - \$400
 - i) This fee includes exam, nurse examiner fee, pregnancy test, microscopic sperm screening, 14 Fr Foley Hymenal Exam, and drug screen.
 - ii) If the itemized bill is less than \$400, the lesser amount of the itemized bill will be paid.
- c) Adult Sexual Assault Examination with Medication - \$550
 - i) This fee includes exam, nurse examiner fee, pregnancy test, microscopic sperm screening, 14 Fr Foley Hymenal Exam, drug screen, and all medications except HIV prophylaxis.
 - ii) If the itemized bill is less than \$550, the lesser amount of the itemized bill will be paid.
- d) Child Sexual Assault Examination with Medication - \$550
 - i) This fee includes exam, nurse examiner fee, pregnancy test, microscopic sperm screening, 14 Fr Foley Hymenal Exam, drug screen, and all medications except HIV prophylaxis.
 - ii) If the itemized bill is less than \$550, the lesser amount of the itemized bill will be paid.
- e) Sexual Assault Examinations Conducted Away from Office/Clinic Base - \$300
- f) Lab Processing Fee - \$50
 - i) A lab processing fee may be paid for testing for venereal diseases for sexual assault examinations performed at a hospital or SANE Clinic. Documentation of the testing must be provided in order to issue payment for a lab processing fee.
 - (1) The Commission does not provide compensation for lab or specimen collection fees.

9) HIV PROPHYLAXIS

a.) The Commission may consider payment for the cost of providing HIV prophylaxis for victims of sexual violence through its Sexual Assault Examination Payment Program. Payment for HIV prophylaxis may be reduced when payment is made by insurance or other collateral sources.

- i) If it is determined that a victim of sexual violence is at risk for exposure to HIV, the Commission may provide payment for a 28-day drug regimen of HIV prophylaxis to a SANE facility, hospital, medical clinic, pharmacy, or victim of sexual violence.
- ii) The Commission may provide payment for one follow-up medical visit to monitor tolerance of the HIV prophylaxis by a victim of sexual violence. The amount of payment for this expense will be decided on a case-by-case basis and it will be determined based on the

reasonableness of the charges. (Additional medical care may be considered for payment if the victim of sexual violence files a regular crime victims' compensation application.)

- iii) If a victim of sexual violence has health insurance, the pharmacy, hospital, or medical clinic filling the prescription for HIV prophylaxis must first seek payment of the expense from the health insurance provider.
- b) The Commission will not reimburse for HIV prophylaxis if the nature of the assault does not support this treatment protocol.
- c) The Commission recognizes that HIV prophylaxis is costly. Sexual assault examinations that exceed \$2,000 must be presented to the three-member Commission for approval pursuant to section 15-23-5 (13) of the *Code of Alabama*. Sexual assault examinations that exceed \$2,000 may take longer to process for payment.
- d) HIV Prophylaxis Payment Limitations
 - i) Truvada (28-day supply): \$1,546.52
 - ii) Isentress 400 mg (28-day supply): \$1,473.72
 - iii) Retrovir (28-day supply): \$554.60
 - iv) Epivir (28-day supply): \$498
 - v) Tivicay (28-day supply): \$1825.99

262-X-11-.02 Eligibility Criteria for Sexual Assault Payments. – REPEALED

CHAPTER 262-X-12 DOMESTIC VIOLENCE -REPEALED

262-X-13 SPECIAL SERVICES

262-X-13-.01 Persons with Limited English Proficiency

Purpose: The ACVCC is committed to providing all victims/claimants with meaningful access to its services. The ACVCC shall provide at no cost to the victims/claimants, timely and accurate language assistance and communication assistance to persons with limited English proficiency (LEP). Language assistance will likely be needed during the submission of the application, claim investigation and appeal hearing. The ACVCC is committed to providing language assistance without delay, at every contact point.

(1) Definitions:

- (a) Limited-English-Proficient Persons: Individuals with a primary or home language other than English who must, due to limited fluency in English, communicate in that primary or home language if the individuals are to have an equal opportunity to participate effectively in or benefit from any aid, service or benefit provided by the ACVCC.
- (b) Appropriately trained:
 - (1) Proficiency in both English and the language spoken by the LEP individual;

(2) Orientation or training that includes the ethics of interpreting; and

(3) Fundamental knowledge in both languages of specialized terms and concepts.

- (c) Vital documents: Documents that individuals applying for compensation benefits must understand, respond to or complete in order to access the crime victims compensation program. Vital documents also include documents that inform the victim/claimant of his/her rights.

(2) Language Assistance Procedure

(a) Oral Language Interpretation

(1) ACVCC will provide competent interpreters and other language assistance in a timely manner.

(b) Interpreter Sources: ACVCC will use a variety of resources that include:

(1) Outside interpreter services;

(2) Voluntary community interpreters who are trained and competent in the skill of interpreting;

(3) A telephone language interpreter service.

(3) Certified/Qualified Interpreters: The ACVCC does not certify individuals as interpreters. However, any person may serve as an interpreter for LEP persons if the individual meets the following requirements:

- (a) The individual has been certified pursuant to 28 U.S.C. § 1827 (B)(1) or found to be otherwise qualified pursuant to 28 U.S.C. § 1827 (B)(2) in the LEP individual's primary or home language by the Director of the Administrative Office of the United States Courts; or
- (b) Is currently certified by any state, regional or national interpreting association, board or body as proficient in the LEP individual's language.

(4) Non-Certified Qualified Interpreters: ACVCC recognizes that a victim/claimant may choose to utilize the services of an interpreter who is not certified, such as a family member or friend. When this occurs, ACVCC will ensure informed choice by taking the following steps:

- (a) ACVCC will inform the victim/claimant that the agency will provide an interpreter at no cost to the victim/claimant.
- (b) If the victim/claimant makes an informed choice to use an interpreter who is not qualified, ACVCC will have the victim/claimant sign a form documenting that choice.
- (c) The interpreter will sign an acknowledgement of his/her responsibility and provide an oral translation of the informed choice statement to the victim/claimant.

- (d) These actions will be documented in the victim's/claimant's file with copies of the signed documents.
- (e) ACVCC will utilize the services of a qualified interpreter to ensure accurate interpretation, when the victim/claimant's chooses to utilize the services of a non-certified qualified interpreter.

(5) Translation of Written Materials

- (a) ACVCC shall provide all vital documents, including the claim application, in Spanish in hard copy and on the ACVCC website, if appropriate.
 - (b) The ACVCC shall review the LEP policy, frequency of contact with LEP individuals, and general population data for the state of Alabama at the beginning of each fiscal year in order to determine if the LEP population demographics have changed to include a significant number of LEP individuals who require translation/interpretation services in some language other than Spanish.
 - (c) In the instance that an LEP victim/claimant requires vital documents and an interpreter in a language other than Spanish, the ACVCC shall make all vital documents available to the victim/claimant in his/her language as soon as possible, without delay. A telephone translation service will be utilized immediately to communicate with the victim/claimant and advise him/her that the vital documents will soon be available in his/her language.
- (6) Notice to LEP Individuals: ACVCC will provide effective notice to LEP individuals that they have the right to language assistance and that such assistance is free of charge.